

|                                                                                |  |                   |  |                                            |  |                                            |  |
|--------------------------------------------------------------------------------|--|-------------------|--|--------------------------------------------|--|--------------------------------------------|--|
| <b>AMENDMENT OF SOLICITATION/MODIFICATION OF CONTRACT</b>                      |  |                   |  | 1. CONTRACT ID CODE                        |  | PAGE OF PAGES                              |  |
| 2. AMENDMENT/MODIFICATION NUMBER                                               |  | 3. EFFECTIVE DATE |  | 4. REQUISITION/PURCHASE REQUISITION NUMBER |  | 5. PROJECT NUMBER (If applicable)          |  |
| 6. ISSUED BY                                                                   |  | CODE              |  | 7. ADMINISTERED BY (If other than Item 6)  |  | CODE                                       |  |
| 8. NAME AND ADDRESS OF CONTRACTOR (Number, street, county, State and ZIP Code) |  |                   |  | (X)                                        |  | 9A. AMENDMENT OF SOLICITATION NUMBER       |  |
|                                                                                |  |                   |  | <input type="checkbox"/>                   |  | 9B. DATED (SEE ITEM 11)                    |  |
|                                                                                |  |                   |  | <input type="checkbox"/>                   |  | 10A. MODIFICATION OF CONTRACT/ORDER NUMBER |  |
|                                                                                |  |                   |  | <input type="checkbox"/>                   |  | 10B. DATED (SEE ITEM 13)                   |  |
| CODE                                                                           |  | FACILITY CODE     |  |                                            |  |                                            |  |

### 11. THIS ITEM ONLY APPLIES TO AMENDMENTS OF SOLICITATIONS

☐ The above numbered solicitation is amended as set forth in Item 14. The hour and date specified for receipt of Offers ☐ is extended. ☐ is not extended.

Offers must acknowledge receipt of this amendment prior to the hour and date specified in the solicitation or as amended, by one of the following methods:

(a) By completing items 8 and 15, and returning \_\_\_\_\_ copies of the amendment; (b) By acknowledging receipt of this amendment on each copy of the offer submitted; or (c) By separate letter or electronic communication which includes a reference to the solicitation and amendment numbers. FAILURE OF YOUR ACKNOWLEDGMENT TO BE RECEIVED AT THE PLACE DESIGNATED FOR THE RECEIPT OF OFFERS PRIOR TO THE HOUR AND DATE SPECIFIED MAY RESULT IN REJECTION OF YOUR OFFER. If by virtue of this amendment you desire to change an offer already submitted, such change may be made by letter or electronic communication, provided each letter or electronic communication makes reference to the solicitation and this amendment, and is received prior to the opening hour and date specified.

### 12. ACCOUNTING AND APPROPRIATION DATA (If required)

### 13. THIS ITEM APPLIES ONLY TO MODIFICATIONS OF CONTRACTS/ORDERS. IT MODIFIES THE CONTRACT/ORDER NUMBER AS DESCRIBED IN ITEM 14.

|                          |                                                                                                                                                                                                                       |
|--------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| CHECK ONE                | A. THIS CHANGE ORDER IS ISSUED PURSUANT TO: (Specify authority) THE CHANGES SET FORTH IN ITEM 14 ARE MADE IN THE CONTRACT ORDER NUMBER IN ITEM 10A.                                                                   |
| <input type="checkbox"/> |                                                                                                                                                                                                                       |
| <input type="checkbox"/> | B. THE ABOVE NUMBERED CONTRACT/ORDER IS MODIFIED TO REFLECT THE ADMINISTRATIVE CHANGES (such as changes in paying office, appropriation data, etc.) SET FORTH IN ITEM 14, PURSUANT TO THE AUTHORITY OF FAR 43.103(b). |
| <input type="checkbox"/> | C. THIS SUPPLEMENTAL AGREEMENT IS ENTERED INTO PURSUANT TO AUTHORITY OF:                                                                                                                                              |
| <input type="checkbox"/> | D. OTHER (Specify type of modification and authority)                                                                                                                                                                 |

**E. IMPORTANT:** Contractor ☐ is not ☐ is required to sign this document and return \_\_\_\_\_ copies to the issuing office.

### 14. DESCRIPTION OF AMENDMENT/MODIFICATION (Organized by UCF section headings, including solicitation/contract subject matter where feasible.)

Except as provided herein, all terms and conditions of the document referenced in Item 9A or 10A, as heretofore changed, remains unchanged and in full force and effect.

|                                                                                                                                  |  |                                                                                                                            |  |
|----------------------------------------------------------------------------------------------------------------------------------|--|----------------------------------------------------------------------------------------------------------------------------|--|
| 15A. NAME AND TITLE OF SIGNER (Type or print)                                                                                    |  | 16A. NAME AND TITLE OF CONTRACTING OFFICER (Type or print)                                                                 |  |
| 15B. CONTRACTOR/OFFEROR                                                                                                          |  | 16B. UNITED STATES OF AMERICA                                                                                              |  |
| 15C. DATE SIGNED                                                                                                                 |  | 16C. DATE SIGNED                                                                                                           |  |
| <br>(Signature of person authorized to sign) |  | <br>(Signature of Contracting Officer) |  |

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SF 30 BLOCK 14 CONTINUATION PAGE

## SUMMARY OF CHANGES

### Continuation of Description

Miscellaneous text in this section has been modified to:

PERFORMANCE WORK STATEMENT (PWS) (02 Apr 26 PWS)

BUNKER/DE-BUNKER TRANSPORTATION SERVICE

#### 1. SCOPE OF CONTRACT

##### 1.1. General:

(a) This contract covers the transportation and removal of United States Government-owned Naval Distillate Fuel (F76) and Jet Aviation Turbine Fuel (JP5) by barge from Commander Fleet Activities Yokosuka (CFAY) berths, per Section 1.10, to U.S. Government or designated Foreign Government owned vessels within the Tokyo Bay area. This service shall be provided by barges compliant with all Japanese maritime laws. The Contractor shall be capable of providing fuel barges for fueling/defueling per Section 1.3 (d).

Though single barge per delivery is preferred, multiple barges will be acceptable for a single order provided the conditions of Section 1.4(a) and 1.9 are met for each barge.

(i) Requesting activity is hereinafter "Customer".

(ii) Contractor's vessels or barges are hereinafter "Contractor".

##### 1.2. Hours of Operation:

Normal operating hours for loading at CFAY Defense Fuel Support Point (DFSP) Hakozaki are 0800 to 1630, Monday through Friday, with necessary operations required on weekends and/or national holidays. Normal delivery hours are first light (approximately 0700) to sunset (approximately 1800), Monday through Friday. Loading typically occurs one day prior to delivery. Demurrage will not be charged to the US Government for the hours between completion of loading and scheduled delivery time. For Customer vessels moored within CFAY's N38 Fuels' Area of Responsibility, vetting (inspection and security screening) is required prior to each delivery. Demurrage will not be charged to the US Government during the hours between completion of vetting and scheduled delivery time.

##### 1.3. Technical Requirement:

(a) The Contractor shall have necessary crew and equipment to accomplish the bunkering/de-bunkering operation.

(b) The Contractor shall be licensed to carry the following clean petroleum products: NATO F76 and F44 (JP5). Such a ship shall comply with the existing Japanese safety and environmental laws and regulations.

(c) The Contractor shall use a ship with cargo tanks that are appropriately coated and are otherwise acceptable to receive the cargo identified in the Customer's order. Barges offered for consideration that are constructed of either stainless steel or carbon steel that has been epoxy coated with a non-coal tar-based grade of epoxy, or uncoated mild steel tanks are acceptable for performance consideration as stated in this contract. The use of copper and copper alloys (brass, bronze, etc.) in vessel compartments, pipelines, heating coils, and fittings is not permitted.

(d) The Contractor shall provide suitable and operable barge(s) capable of delivering a minimum of 2,400 kl of fuel per day. To meet this delivery requirement, the Contractor must be able to support simultaneous fueling operations using multiple barges at the same time. Task Orders exceeding this daily capacity will be fulfilled over multiple days.

(e) The barge provided by the Contractor pursuant to this contract is subject to inspection and acceptance by a representative of the Customer and/or Commander Fleet Activities Yokosuka (hereinafter referred to as "CFAY") DFSP Hakozaki prior to loading or discharging of cargo.

##### 1.4. Description of Services:

(a) Operation Charge for Bunkering/De-bunkering: The Contractor shall perform fueling/defueling services upon receipt of a written (Standard Form 1449) or oral Task Order from the Contracting Officer (KO) or a designated Ordering Officer (OO). All oral orders shall be formalized with a written SF 1449 within ten (10) days of issuance of the oral order.

If a Task Order is issued within 48 hours of the required delivery time, the contractor is not obligated to perform. However, should the Contractor have the capability and agree to perform, it shall be at the established contract price.

Performance commences when the Contractor's vessel/barge has already been dispatched from its ordinary mooring place for a specified order. As soon as possible after receipt of the Task Order, but no later than the departure of barge from its regular berth (ordinary mooring place), the Contractor shall provide the barge name to the KO/OO and Contracting Officer's Representative (COR) to be included in Task Order. Once this information has been provided, substitution of barge equipment requires Contracting Officer approval.

. Prior to the issuance of any oral or written Task Order for such services, the Ordering Officer must secure and receive documented funding and acceptance from the Customer. This funding must be sufficient to cover all estimated charges, including potential ancillary fees. The Contractor shall have no obligation to perform until this funding prerequisite has been met.

In the event that a scheduled delivery is cancelled, reduced in quantity, or otherwise not accepted at the delivery point, the Contractor shall return the on-specification, unused or undelivered fuel to CFAY DFSP Hakozaiki or Origin at no additional cost to the Government.

(b) Demurrage Charge for Bunkering/De-bunkering: Demurrage is a charge, payable by the Customer to the Contractor, for excessive time lost when bunkering or de-bunkering operations are delayed or stopped or reasons not attributable to the Contractor's fault or negligence. The Ordering Officer must secure and receive documented acceptance for all required funding prior to the commencement of any work. This includes ensuring sufficient funds are available to cover demurrage charges.

The Customer vessel will be allowed 120 minutes after scheduled delivery time to commence delivery. If operations are delayed beyond the 120-minute, the Contractor shall be entitled to payment for demurrage as specified in the contract pricing. For orders spanning multiple days, 120 minutes commences from the Customer's requested delivery time each day.

The following periods shall not be included as demurrage:

- (i) Delays caused by inclement or severe weather will result in no charge or penalties to either the Contractor or the Government.
- (ii) Normal time spent connecting and disconnecting hoses or
- (iii) Any time lost when the Customer needs to stop the operation and open/close oil booms due to entering/releasing the Contractor's barge.
- (iv) Any period outside of normal fuel operation hours (sunrise to sunset) within Yokosuka Naval Base, unless work during these hours was specifically requested.

When multiple barges are assigned to a single operation, the 120-minute time for a subsequent barge shall not commence until the previous barge has departed and the berth is clear and ready. Barges waiting their turn to come alongside shall not accrue demurrage.

(c) Cancellation Charge for Bunkering/De-bunkering: The Ordering Officer has the authority to cancel an order, either orally or in writing, at any time prior to the scheduled commencement of pre-loading services. If the initial order was confirmed in writing, the Ordering Officer will formalize the cancellation via a task order modification. A cancellation charge, as specified in the task order, will be assessed without regard to the size or number of barges utilized. The Ordering Officer must secure and receive documented acceptance for all required funding prior to the commencement of any work. This includes ensuring sufficient funds are available to cover the cancellation fee. The Customer shall pay the cancellation charge per task order without regard to the size and/or the number of barges utilized.

Cancellation of the delivery due to circumstances beyond the control of the Customer vessel, will not result in a cancellation charge. Such circumstances include acts of God or of the public enemy; fires; floods; epidemics and severe weather. The Contractor will not be entitled to any payment under the termination for convenience provision at FAR 52.212-4(l) that is separately included in this contract.

Applicable charges upon cancellation are determined by the status of the operation at the time the cancellation request is received. Scenarios are detailed below:

- (i) If the task order for bunkering or de-bunkering service is cancelled before the Contractor's barge leaves its regular berth (ordinary mooring place), neither the Operation Charge nor Cancellation will be paid to the Contractor.
- (ii) When the task order for bunkering or de-bunkering service is cancelled after the Contractor's barge already leaves its regular berth (ordinary mooring place) but before start loading fuel, no operation charge applies but the Customer will pay cancellation charge to the Contractor in accordance with the pricing schedule.
- (iii) When the task order for bunkering service is cancelled after the Contractor's barge already starts fuel pre-loading or anytime after completed fuel loading at CFAY DFSP Hakozaiki, the operation charge does not apply, but the Customer will pay cancellation charge to the Contractor in accordance with the pricing schedule.

In the event of any dispute regarding applicable charges, the KO shall have the final authority to determine the charges payable to the Contractor and the responsible paying party.

In making this determination, the KO will consider all relevant factors, including but not limited to: the extent of the work performed by the Contractor, the reason for the dispute or cancellation, and any documented costs incurred by either party. The decision of the KO shall be final.

(d) Delay in Performance: Any overtime costs incurred by US Government personnel as a result of a delay in performance caused by the contractor will be the responsibility of the Contractor. These costs will be deducted from the Contractor's invoice.

(e) Failure to Perform: Should the Contractor be unable to perform and the US Government must procure services from an alternate source to meet delivery or defuel requirements the Contractor is unable to meet, the contractor will be liable for any re-procurement costs in excess of the delivery order price.

(f) Cargo Delivery Services.

(i) Loading Cargo. Upon arrival at CFAY DFSP Hakozaiki, the Contractor shall load any quantity of cargo as specified by the COR / OO / KO.

(ii) Discharging Cargo. Upon arriving at the Customer vessel, the contractor shall discharge any quantity of cargo, entire or partial, as specified by the COR / OO / KO. Prior to connection, the contractor is required to ask for a Customer vessel representative to verify the seal number and confirm that the seal is intact.

(iii) Defueling Cargo. Upon arriving at the Customer vessel, the contractor shall defuel any quantity of cargo, entire or partial, as specified by the COR / OO / KO..

(g) Responsibility for Cargo.

(i) Loss or Damage Liability. The contractor shall sign the Tanker/Barge Material Inspection and Receiving Report (DD 250-1) as its receipt for the Government property it received for transportation. The Contractor assumes full liability for, and agrees to reimburse the Government for, the actual loss and/or damage to the cargo, except when the loss and/or damage arises from circumstances beyond the control of the contractor. Such circumstances include acts of God or of the public enemy; fires; floods; epidemics and severe weather. Liability is based on the procurement and transportation cost of the cargo.

(ii) Contamination or Degradation Liability. If contamination or degradation of Government cargo occurs due to the contractor's failure to properly maintain its equipment, the contractor shall be liable to the Government for replacement costs and/or associated costs with returning the cargo to specification. Replacement costs are based on the procurement and transportation cost of the cargo.

(iii) Gauging. Gauging of the barge(s) is performed jointly. A Government representative must witness gauging of the barge(s). Tankerman, and/or third party inspection personnel are responsible for gauging of the barge. Gauging equipment used for quantity determination must be in proper serviceable condition. The Contractor shall ensure that responsible personnel are readily available for gauging operations so as to not unduly delay release and departure of the barge. The Contractor shall ensure that Tanker/Barge Material Inspection and Receiving Report (DD 250-1) is annotated at both the loading and discharge locations. The form may be annotated by the Government Representative or CFAY Fuel Terminal Operator, but in this case the contractor will verify and agree with gauge figures and readings annotated.

(iv) Carry Away Liability. The Contractor shall be liable for all measurable product carried away due to failure of the contractor's equipment to discharge the cargo completely, excluding product remaining in equipment lines, manifolds, and sumps (10 barrels before line drop). Liability is based on the procurement and transportation cost of the cargo carried away and is to be deducted from the contractor's invoice.

(v) Ownership, Acceptance, and Disposition of De-bunkered Fuel. Ownership of all de-bunkered fuel shall remain with the Customer until said fuel has passed all quality acceptance testing conducted by CFAY DFSP Hakozaiki and has been formally accepted into CFAY DFSP Hakozaiki inventory. Should the CFAY DFSP Hakozaiki determine, at its sole discretion, that the de-bunkered fuel is off-specification, the product will be rejected. Upon rejection, the Customer shall be solely responsible for all costs and logistics associated with the transportation, removal, and final disposal of the rejected fuel. CFAY DFSP Hakozaiki shall not be financially liable for any aspect of the off-specification product's disposition. The removal and disposal of rejected fuel are outside the scope of this contract. The Customer is solely responsible for making all necessary arrangements for the disposition of rejected product in accordance with all applicable regulations.

(h) Reporting and Communication. All delivery orders, task orders, service requests, and related operational communications ("Orders") placed under this contract shall be issued in the English language. The Contractor shall maintain contact with the COR, the various consignors, consignees, and the Government Representative or CFAY Fuel Terminal Operator to ensure prompt and efficient cargo movement, and shall provide position and status reports and communication regularly to the COR and others, as required.

(i) Performance Objective - Readiness Notice. Prior to arrival CFAY DFSP Hakozaiki or the Customer vessel, the contractor must provide a Notice of Readiness (NOR) at a minimum of 24, 12, and 3 hours by fax, e-mail or telephone. In addition, the contractor shall provide NOR to DFSP officials immediately upon the barge's arrival at the loading terminal of the port complex.

(ii) Performance Objective - Cargo Documentation. The Contractor shall maintain a copy of all loading documents, including Tanker/Barge Material Inspection and Receiving Report (DD 250-1) for Government use at each Customer vessel. Failure of the contractor to present the listed forms to Customer vessels on more than two occasions annually will result in a performance failure.

(i) Safety and Security:

(i) Regulatory Compliance. The Contractor shall maintain and operate all equipment in strict accordance with all applicable Japanese maritime laws and regulations, including but not limited to the Port Regulations Act and the Act on Prevention of Marine Pollution and Maritime Disaster. Furthermore, all operations shall comply with applicable U.S. Department of War (DoW) regulations and the directives of Commander, Fleet Activities Yokosuka (CFAY). The Contractor shall be responsible for obtaining any necessary insurance, licenses and permits at no additional cost to the US Government.

(ii) Safety and Health of Personnel. The Contractor is responsible for ensuring that proper safety and health precautions are taken to protect personnel, the general public, and property of others. All services shall be performed by individuals fully qualified and licensed in their relevant area. The Contractor will ensure that subcontractors comply with these requirements.

(iii) Death or Injury to Personnel. In all instances where Contractor's employees are absent due to injury or death or for purposes of receiving medical attention due to an injury during or arising from performance under this contract, the Contractor shall submit a full written report of the facts and the extent of such injury to the COR within 24 hours following the occurrence of such injury or death. In addition, the contractor shall submit to the COR a written accident report of each and every accident occurring to the contractor's employees within 24 hours after the occurrence. If an investigation of the accident is conducted, the contractor shall assist the investigator in securing statements from its employees and shall make pertinent records available to the investigator and to the COR. In addition, the Contractor shall cooperate in the reporting and investigation of any environmental or health incident connected with the services provided under this contract.

(iv) Heightened Vigilance. The Contractor has an obligation to be alert at all times in order to contribute to the protection of the U.S. Navy Customer

vessels and US Government personnel. The Contractor shall immediately report to the ship's officer, or nearest available Embassy official or Host Nation (HN) representative, any signs of suspicious activity in or around the site of performance. Suspicious activities include, but are not limited to, unauthorized personnel or vehicles in the vicinity of the site of performance, unusual equipment or movement of persons or supplies, and any other activity that may be perceived as a threat to United States personnel, property or interests. The Contractor also has an obligation to report any such activity perceived outside the site of performance, if such activity could reasonably have an impact on the site of performance or could be perceived as a threat to United States personnel, property or interests.

#### 1.5. Duties and Responsibilities of the Parties:

(a) When providing services in response to orders issued pursuant to this contract, the Contractor and/or the Contractor's representative shall be responsible for:

(i) Complying with all applicable statutes, ordinances, laws, codes, and regulations of Japan such as, but not limited to, Safety, Environmental, Labor, Hour and Wage, Workers Compensation and Occupational Health. The Contractor shall, without additional expense to the Government, be responsible for obtaining all required licenses, permits, and the like required for the performance of this contract.

(ii) During operation under this contract, in all instances where cargo, contractor's equipment, or private or US Government property is damaged, lost, or pilfered while in the care, custody, or possession of the contractor or through handling by the contractor's employees, agents, or subcontractors, the contractor shall submit a full written report of the facts and the extent of such damage or loss to the COR within 24 hours following the occurrence or discovery. Details should include how the damage occurred, investigation detail, and an estimate of how and when reimbursement for damages will occur.

(iii) Attend each fuel operation at the place of delivery and support the coordinating of smooth operations. S/he understands bunkering/de-bunkering procedures and forwards all notices to the fuel terminal such as commencement and termination time of the operation, and duration of the operation is established.

(iv) Providing a ship that arrives at CFAY DFSP Hakozaki for loading or at the Customer's ship for de-bunkering operation in clean, gas-free condition, ready for internal inspection by a representative of CFAY DFSP Hakozaki or the Customer.

(v) Providing effective connections such as attachments, couplings, extra hoses, and reducers with the manifold pipes of the Contractor's ship for loading and discharging of the cargo.

(vi) Provide personnel, representatives, and any subcontractors directly involved in the provision of services or delivery of goods, including all interactions with Customers and other active-duty personnel, are able to communicate effectively in the English language. At all times during service delivery, the Contractor must have at least one representative on-site who is fluent in English to act as a point of contact for Government personnel.

(vii) Invoice(s) must be submitted with Task Orders and appropriate evidentiary matter to the designated billing office. Each invoice should include all proper information based on the requirements of FAR 52.232-25 Prompt Payment (Jul 2013).

(b) CFAY DFSP Hakozaki will be responsible for:

(i) Issuing task orders including oral orders.

(ii) Providing all cargo (fuel to be loaded for bunkering services).

(iii) Responsible for providing all shoreside line handling services for vessels mooring at the facility for loading and discharging operations.

(c) In the event of any dispute arising under or relating to this contract, the dispute shall be resolved solely by a final decision of the Contracting Officer.

(d) Responsibility for Damage to Government Property.

(i) Damage Due To Contractor Negligence. The contractor shall be responsible for unresolved damage claims and must assume liability for damage to Government property resulting from negligence on the part of the contractor. The contractor must also reimburse the Government for actual expenses incurred by the Government due to breakdown of contractor's equipment or delay due to negligence of the contractor, which prevents prompt acceptance or delivery of intended cargo. The contractor shall also be responsible for lost cargo in route, caused by equipment failure, such as a spill. Lost cargo shall be measured and documented on the Tanker/Barge Material Inspection and Receiving Report (DD 250-1).

(ii) Prevent Damage to Facilities. The contractor shall be responsible for removing equipment when directed by DFSP personnel or paying for damages caused as a direct result of contractor's decision to remain at pier side during adverse circumstances such as acts of God or of the public enemy; fires; floods; epidemics and severe weather.

#### 1.6. Contractor Quality Control, Reporting and Records:

(a) Quality Control Plan. The Contractor shall establish and maintain a Quality Control Plan (QCP) to ensure quality service is provided throughout the terms of the contract. The Contractor shall submit a proposed QCP as part of its technical proposal. The QCP should include as a minimum a description of how the Contractor intends to meet the performance objectives, provide cargo free of contamination or degradation, and should also identify those areas the Contractor sees as critical to the Customers for this contract, how it will monitor quality performance in those areas, and how it will maintain or exceed Customer expectations, including identification and correction of problems.. The US Government will identify deficiencies noted during the technical evaluation to the Contractor, who will be responsible for making the necessary corrections. . The final, approved QCP must be prepared and submitted in both English and Japanese and shall serve as the guiding document for all work performed under this contract. The Contractor is expected to review and incorporate relevant local procedures and related checklists into their QCP to ensure fueling operations are

performed safely and effectively.

(b) Problem/Failure. The contractor shall self-identify any problem or failure that may impact contract performance. In accordance with its QCP, the contractor shall notify the COR immediately of the problem, and within two (2) business days provide to the COR a succinct written plan of action of contractor self-identification or awareness of a potential or real problem, failure, or deficiency. The contractor shall detail the methodology for correcting the problem or deficiency in the plan of action and provide an assurance of the specific time required to bring performance back to acceptable quality levels, as applicable.

(c) Use of Quality Performance Information. On a monthly basis, the COR will provide a contractor performance report to the KO. Information from these monthly COR reports will be compiled cumulatively to provide annual reports of past performance for use in past performance evaluations for future awards.

(d) US Government Quality Assurance. Final determination that the services rendered are conforming is solely the responsibility of the US Government. The US Government Service Delivery Summary (SDS) is not a substitute for contractor quality control. The US Government will monitor the contractor's performance in accordance with the SDS.

(e) Performance Measurement. The KO and the COR will monitor contractor performance and compliance with the terms and the conditions of the contract in accordance with the SDS. The COR, in conjunction with the KO, will conduct periodic meetings with the contractor to discuss operations, and problem areas.

(f) Visits. US Government personnel, including but not limited to the COR and/or Government representative and/or CFAY Fuels Terminal Operator, may make announced periodic visits to the contractor's facilities to observe daily operations. Announced visits will follow a 1-day prior notice to the contractor. During these visits, the contractor shall provide knowledgeable personnel to tour and inspect the areas. The KO and/or his representative will make periodic inspections.

#### 1.7. Insurance Requirements.

(a) Cargo Insurance. The Contractor shall procure and maintain cargo insurance, at its own expense, as required by Japanese law, at least equal to the value of the cargo transported.

(b) Liability, Pollution and Environmental Insurance. The Contractor shall procure and maintain, at its own expense, the appropriate amount of Liability, Pollution, and Environmental insurance as required by Japanese law.

(c) Evidence of Insurance. The Contractor shall provide the Contracting Officer (KO) with evidence of insurance per 1.7 (a) and 1.7 (b). Evidence must be submitted prior to contract award and immediately upon any policy renewal or change in coverage.

Evidence should include, at a minimum:

(i) Insurance Company Name and Contact

(ii) Insurance Contract Number

(iii) Period of Performance

(iv) Contractor's Company Name and Contact

(v) Seal with the Company Name who generated the document.

(d) Written Notice of Policy Insurance Changes. The Contractor shall furnish a written notice to the KO 30 days in advance of the effective date of any reduction or cancellation insurance cited in 1.7 (a) and 1.7 (b).

#### 1.8. US Government Ordering Officer Responsibilities;

(a) CFAY will be the Ordering Office under this contract. The Contractor will be provided the name and contact information for the Ordering Officer at time of award. The Ordering Officer will perform the following duties:

(i) Cargo Routing. Issue cargo routing instructions to shippers.

(ii) Order Services. Place delivery orders for refueling and defueling services and schedule all movements.

(iii) Contact Information. Furnish the contractor with the names and contact information of persons designated as the US Government's ordering, inspecting, and receiving representatives upon award of the contract.

(iv) Acknowledge Receipt. Acknowledgement of receipt shall be completion of the Tanker/Barge Material Inspection and Receiving Report (DD 250-1) consisting of location, date of arrival, barge name/number, and cargo number and shall provide for signature by both a contractor representative and a designated US Government representative.

(v) Measure, Verify and Document Cargo. Arrange for measurement, verification, and documentation of all cargo remaining aboard barges after delivery, as well as the reason.

(vi) Notify Customer Vessels. The Ordering Officer will notify the receiving Customer vessels of the scheduled arrival of the barge, including estimated date and time of arrival, barge name/number, and cargo number.

- (vii) Authorize Access. Arrange for an authorized representative of the contractor to have access to CFAY facilities to load barges as necessary.
- (viii) Supply Required Forms. Supply the contractor with all forms that the contractor is required to file with the Government representative or CFAY Fuels Terminal Operator.
- (ix) Provide a Safe Berth. Provide a reachable and safe berth at CFAY for the barge to be afloat at all times, free of dockage, wharfage, pilotage, toll, and port charges. Once loading is complete, the barge will only be allowed to remain at the pier with the coordinated request and agreement of the Ordering Officer and CFAY DFSP Hakozaki personnel.
- (x) Inspect and Accept Equipment. CFAY COR or Government Representative will conduct pre-award and/or pre-service inspections for contractor equipment (See Section 1.9(n)).

#### 1.9. Contractor Furnished Equipment and Crew.

The Contractor shall furnish all supplies, materials, equipment, and personnel (including line handlers) necessary to perform the services incidental to the operation of the equipment listed below. All vessels utilized in the performance of this contract shall possess and carry on board valid proof of all compulsory insurance required by Japanese law for operation in Japanese coastal and inland waterways. The Contractor shall provide evidence of this insurance to the Government in accordance with Section 1.7.

- (a) Barge Equipment Requirements. The Contractor shall have sufficient self-propelled tank barges capable of safely navigating and performing deliveries of fuel within the designated operational area outlined in Section 1.1 . Contractor is required to comply with the maximum safe navigable draft and length at DFSP (See Section 1.10). Barges must be equipped with fenders to prevent damage to Customer vessels.
- (b) Cargo Pumping System. All barges must have cargo pumping systems with necessary hoses and connections capable of completely discharging and stripping the cargo tanks without outside power or assistance from the shore. Prior to loading, CFAY Fuels Terminal Operator will connect hoses to shore facilities and Contractor will connect hoses to barge. Prior to discharge or defuel, Contractor personnel will connect hoses to barge and Customer's personnel will connect hoses to their vessel.
- (c) Cargo Tank Stripping System. All barges must have an independent cargo tank stripping system (free from use of barge pumps, lines, or hoses) capable of stripping all but a maximum of 100 USG of product per cargo tank, not to exceed 500 USG for the entire barge. The discharge rate during tank stripping operations may be less than the minimum rates stipulated above.
- (d) Water Stripping System. All barges shall have an independent water stripping system (free from use of barge pumps, lines, or hoses) capable of removing all water from each cargo compartment. In the event that a large amount of water is discovered on the barge, the Contractor and Government representative or CFAY Fuels Terminal Operator will investigate to determine the source and cause of the water. If the water source is determined to be from the shore tank, the US Government will be responsible for the cost of removal. If the source is determined not to be the cause of the US Government, such as intake of seawater, then the Contractor shall assume removal costs.
- (e) Gauge Point Marks, Strapping Tables, Trim Charts and Calibration. All barges shall contain permanent gauge point marks with reference height stenciled to the deck or compartment hatch, certified strapping tables not exceeding eight years in age (provided that no structural alterations have been performed subsequent to the calibration date), trim correction charts and legible draft markings. The Contractor shall provide copies of the cargo strapping tables and trim correction charts to the Government representative or CFAY Fuels Terminal Operator upon request at loading and discharge points. A packet containing all strapping tables and trim correction charts pertaining to all equipment used in the performance of this contract shall be available on each tug or barge. The Contractor shall provide a list showing the maximum load capacity of each barge at safe draft, updated whenever equipment or regulation or traffic area depths change. The Contractor shall develop and maintain a barge gauge history for US Government use or inspection in comparing barge loaded figures to shore loading figures. Anytime the physical structure of a barge is changed, due to damage or equipment modification, the barge must be strapped again, and a new set of strapping tables and trim correction charts provided to the US Government, at no cost to the US Government.
- (f) Stainless Steel Tanks. All barge cargo tanks will be constructed of either stainless steel, carbon steel that has been epoxy coated with a non-coal tar based grade of epoxy, or uncoated mild steel.
- (g) Steel Valves. Steel valves shall be an integral part of all barges used in the performance of this contract. Use of copper and copper alloys (brass, bronze, etc.) in barge compartments, pipelines, heating coils, and fittings is not permitted.
- (h) Spill Rails. Spill rails are required on all barges.
- (i) Fenders. Barges must be equipped with appropriate fenders (e.g., donut fenders) to prevent damage to Customer vessels and mooring facilities during all phases of the operation.
- (j) Spill Response Equipment. Each barge must carry sufficient oil boom and other related spill response equipment necessary to contain a potential spill at the point of transfer.
- (k) Hoses and Connections. All cargo hoses, fittings, and connections must be in good working condition, certified for their intended use, and compatible with vessel connections. Quantity and compatibility of hoses and connections must be sufficient to support fueling operations.
- (l) Sectional Fuel Delivery Hose. Barge shall be equipped with 200 feet of sectional fuel delivery hose (ship or dock hose) and various coupling attachments necessary for over-the-water fuel loading to ships or other marine vessels. The Contractor is liable for any damage or loss resulting from faulty equipment or caused by contractor negligence.
- (m) Barge Initial Inspection and Acceptance. The Contractor shall provide barge equipment that conforms to the specifications of this contract (see

Section 1.9(a), Barge Equipment Requirements), and that passes the US Government's loading inspection. US Government inspection and acceptance of the contractor's equipment is a condition precedent to the US Government's obligation to make payment under the delivery order.

(n) Performance Objective - Pre-Service Inspection. At the time and date specified by the US Government's Representative or CFAY Fuels Terminal Operator, the Contractor shall make its barge(s) available for inspection and acceptance by the US Government at CFAY. If the Contractor fails to provide conforming equipment at the designated time, the COR will notify the KO for further resolution. Barge tanks must be prepared IAW the tables in MIL-STD-3004 Minimum Requirements for the preparation of barge and tanker cargo tanks. Any barge which previously carried "Palm Oil" is not acceptable unless the Contractor obtains a waiver from the Government for use of such vessels under the contract.

Barges must be presented cleaned, gas free, and free of temporary patches. The Contractor shall provide a valid marine chemist certificate to the US Government representative or CFAY Fuels Terminal Operator prior to inspection. Cargo tanks and bulkheads must be free of water, loose rust, sludge, mud, silt, and foreign objects. The Contractor is responsible to take a sample of scale from inside cargo tank(s) and have it tested to determine the potential effects of the corrosion and gum characteristics on the cargo to be loaded. Contractor shall present scale sample certificate of analysis to the US Government representative or CFAY Fuels Terminal Operator for review. The Contractor shall prepare the barge for inspection at its own expense. Acceptance of the equipment by the US Government shall in no way be construed to attest to the seaworthiness of the barge or to other requirements of the Japanese maritime laws and regulations, overseen by the Ministry of Land, Infrastructure, Transport and Tourism (MLIT) and the Japan Coast Guard. The US Government representative or CFAY Fuels Terminal Operator will issue written confirmation of acceptance of equipment through the COR.

(o) Maintain, Position, and Operate Equipment. The contractor shall maintain, clean (including slop tanks), repair, position and operate its equipment to ensure its performance under the contract, including providing fuel to operate the barge pump engines and shall provide all crew living provisions.

(p) Provide a Licensed Tankerman. The Contractor is responsible for following all governing regulations and statutes in providing a licensed tankerman at all loading and discharge points identified in the PWS or hereafter required by the US Government. The licensed tankerman must gauge barge tanks jointly with the US Government Representative or CFAY Fuels Terminal Operator and make a record of quantities on required forms including Tanker/Barge Material Inspection and Receiving Report (DD 250-1). As directed by the COR, the contractor must furnish any additional shore tankerman as required.

(q) Communication between Crew and Customer. The Contractor shall ensure that its personnel, representatives, and any subcontractors directly involved in the provision of services or delivery of goods to vessels, including all interactions with Customers and other active-duty personnel, are able to communicate effectively in the English language. At all times during service delivery, the Contractor must have at least one representative on-site who is fluent in English to act as a point of contact for Government personnel.

#### 1.10. Berth Information:

| Berth              | Maximum Ship's LOA (feet) | Maximum Ship's Beam (feet) | Maximum Ship's Draft (feet) | Maximum Ship's DWT (tons) | Type of Manifold (inch) | Type of Manifold (connection) |
|--------------------|---------------------------|----------------------------|-----------------------------|---------------------------|-------------------------|-------------------------------|
| Yokosuka (Berth 2) | 567                       | 65                         | 34                          | 10,000                    | Various * (1)           | Various * (1)                 |
| Yokosuka (Berth 3) | 567                       | 85                         | 34                          | 10,000                    | Various * (1)           | Various * (1)                 |
| Yokosuka (Berth 6) | 844                       | 110                        | 36                          | 46000                     | Various * (1)           | Various * (1)                 |
| Yokosuka (Berth 7) | 690                       | 108                        | 36                          | 46000                     | Various * (1)           | Various * (1)                 |
|                    |                           |                            |                             |                           |                         |                               |



|                                            |       |     |      |        |                      |                                  |
|--------------------------------------------|-------|-----|------|--------|----------------------|----------------------------------|
| Yokosuka<br>(Berth 8)                      | 636   | 105 | 39   | 46000  | Various *<br>(1)     | Various *<br>(1)                 |
| Yokosuka<br>(Berth 9)                      | 636   | 105 | 39   | 46000  | Various *<br>(1)     | Various *<br>(1)                 |
| Yokosuka<br>(Berth 12)                     | 1092  | 252 | 41   | 103000 | Various *<br>(1)     | Various *<br>(1)                 |
| Yokosuka<br>(Berth 13)                     | 360   | 30  | 30   | 6,100  | Various *<br>(1)     | Various *<br>(1)                 |
| Yokosuka<br>(Harbor Master<br>Pier - West) | 690   | 108 | 36   | 46000  | Various *<br>(1)     | Various *<br>(1)                 |
| Yokosuka<br>(Harbor Master<br>Pier - East) | 690   | 108 | 36   | 46000  | Various *<br>(1)     | Various *<br>(1)                 |
| Hakozaki<br>(North Dock -<br>244)          | 590.5 | N/A | 32.8 | 48000  | 8 (ANSI)<br>12 (JIS) | Loading<br>Arm<br>Loading<br>Arm |
| Hakozaki<br>North Dock - 246)              | 657.2 | N/A | 34.2 | 48000  | 8 (ANSI)<br>12 (JIS) | Loading<br>Arm<br>Loading<br>Arm |
| Hakozaki<br>(Canal Dock)                   | 150   | 20  | 13   | 700    | 8 (ANSI)             | Loading<br>Arm                   |
| Yokohama<br>(North Pier B)                 | 460   |     | 23   |        | Various              | Various *<br>(1)                 |
| Yokohama<br>(North Pier D)                 | 250   |     | 25   |        | Various              | Various *<br>(1)                 |

|                            |     |  |    |  |         |                  |
|----------------------------|-----|--|----|--|---------|------------------|
| Yokohama<br>(North Pier E) | 600 |  | 30 |  | Various | Various *<br>(1) |
| Yokohama<br>(North Pier F) | 500 |  | 30 |  | Various | Various *<br>(1) |

Various \*(1) Bunker barge will moor alongside vessel berthed at pier. Connection type varies by vessel class.

#### 1.11 Regulation/Instruction for Oil Spills:

When fuel spills occurred during operations, the Contractor shall commence action to remove and clean-up the spilled oil immediately. The Contractor is responsible for cleaning up the spills that occur as a result of the contractor's fault; if such spills damage U.S. Government property, it is responsible for reimbursing the Government for the cost of the spilled fuel. The Contractor shall comply with the following law and regulations as to oil spillage:

- (a) Japanese Environmental Governing Standards (JEGS), Chapter 18, Spill Prevention and Response Planning issued by U.S. Forces Japan.
- (b) Law Relating to the Prevention of Marine Pollution and Maritime Disaster

## Continuation of Deliveries or Performance

**Miscellaneous text in this section has been modified to:**

Questions and Answer (02 Apr 2026)

(1)The Contractor maintains valid cargo insurance in full compliance with Japanese law, as required under Section 1.7(a). However, under the applicable insurance arrangements for domestic coastal barges, the insurance coverage is documented only by the insurance policy itself, and a separate stand alone "insurance certificate" document is not issued by the insurer. Accordingly, we would appreciate guidance on how the Contractor should comply with Section 1.7(c), given that submission of the full insurance policy to a third party may constitute a violation of contractual confidentiality obligations with the insurer.

Government answer:

Thank you for your response. The full policy is not required to be submitted, but relevant evidence that the Contractor has the necessary permits to operate in Japan. For this reason, the following changes to the PWS have been made to clarify the insurance in para 1.7:

(a) Cargo Insurance. The Contractor shall procure and maintain cargo insurance, at its own expense, as required by Japanese law, at least equal to the value of the cargo transported.

(b) Liability, Pollution and Environmental Insurance. The Contractor shall procure and maintain, at its own expense, the appropriate amount of Liability, Pollution, and Environmental insurance as required by Japanese law.

(c) Evidence of Insurance. The Contractor shall provide the Contracting Officer (KO) with evidence of insurance per 1.7 (a) and 1.7 (b). Evidence must be submitted prior to contract award and immediately upon any policy renewal or change in coverage.

Evidence should include, at a minimum:

- (i) Insurance Company Name and Contact
- (ii) Insurance Contract Number
- (iii) Period of Performance
- (iv) Contractor's Company Name and Contact
- (v) Seal with the Company Name who generated the document.

(d) Written Notice of Policy Insurance Changes. The Contractor shall furnish a written notice to the KO 30 days in advance of the effective date of any reduction or cancellation insurance cited in 1.7 (a) and 1.7 (b).

(2) In addition, the insurance policy documentation is available only in Japanese.

Please advise whether submission of the relevant documentation in Japanese is acceptable.

We appreciate your guidance on the appropriate approach to ensure compliance with the contract while avoiding unintended violations of insurance confidentiality obligations.

Government answer: Please be advised that, for the insurance-related section of this submission only, it is acceptable to provide the documentation in Japanese. This exception is granted on the basis that our designated Technical Expert is able to read and validate the contents directly in Japanese. All other sections requiring both English and Japanese are stated in the contract and must be complied with.